

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On April 24, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CDAD. PROP. ***COMMUNITY.1 (hereinafter, the respondent), through the Agreement that is transcribed:

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AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following
FACTS

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 13, 2023. The complaint is directed against the entity COMMUNITY OF PROPERTY OWNERS ***COMMUNITY.1.

“(…) that in the complained Community, a video surveillance system was installed with cameras that are oriented towards the public road, without prior administrative authorization for this. It also indicates that unauthorized personnel have free access to the Community's video surveillance system (…)”
He provides images of the location of the cameras and communications maintained with the Community Administration in which he requests information about the video surveillance system (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent on September 27, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On October 25, 2023, a written response to the forwarded complaint was received, in which the respondent stated the following:

- Responsible for the video surveillance system: Community of Property Owners Conjunto Hotel Apartamentos Don B.B.B. A copy of the entity's CIF is attached as DOCUMENT No. 1. President of the Community: Mr. C.C.C., with DNI ***NIF.1.
- Number of installed cameras: XX cameras.
- Photographs of the devices: Photographs of the installed devices are attached as DOCUMENT No. 2 (…)
- Photograph of signs warning of the monitored area: Photographs of the signs are attached as DOCUMENT No. 4.
- A copy of the Minutes of the Ordinary General Meeting of Property Owners where the installation of the video surveillance system was approved, with the required formalities and legal majorities, is attached as DOCUMENT No. 5.
- We declare that the installed cameras, as can be observed, do not record or allow the view of the community pool.

Retention period of the images: 30 days.

- A protocol of action for the video surveillance system signed by the President of the community, as the legal representative of the same, is attached as DOCUMENT No. 6.

FOURTH: On October 13, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions...

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3/10

in the Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

In this case, we proceed to examine the complaint dated 13/07/23 through which the "presence of cameras that excessively record public space accessed by unauthorized personnel" is reported (folio no. 1).

Article 5.1 c) of the GDPR states the following: Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be directed towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring areas of transit without justified cause.

Furthermore, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps, in accordance with the current LO 4/1997, August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth noting that even in the case of a "simulated" camera, it must preferably be directed towards private space, as it is considered that such devices may affect the privacy of third parties, who feel intimidated by it under the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the area of third parties who may feel intimidated by them, as it affects their area of free transit.

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4/10

III

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of their processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

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